



AI chatbots as a Hallucinogenic Epidemic Towards the Practice of Law;

An ethical inquiry on the right of use of AI chatbots.

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INTRODUCTION

Ethics, by nature, is a concept that delimits, restricts, and determines the actions of professionals to ensure accountability and impose that the good prevails—it does not concern itself with what is most practical or most efficient alone, but rather with what is right and proper. To put it in the words of philosophers like Socrates, Plato, Aristotle, and those who came to develop and adapt their philosophies, ethics is a science of moral principles.¹ Ethics is a moral principle that constitutes something more than the individual and personal set of standards.²

In the context of the Philippines and the Legal Profession, ethics in the practice of law is regulated by AM 22-09-01-SC, more commonly known as the Code of Professional Responsibility and Accountability or CPRA.³ The aforementioned was recently amended last April 11, 2023, after 34 years since the Code of Professional Responsibility or CPR in 1988.⁴ Whereby, it now defines ethics as an ‘experiential manifestation of moral standards.’⁵ Of note in the amendment is that CPRA is now divided into ‘Canons’ in contrast to its previous iteration of being divided into ‘Chapters’, or statutes which are divided by ‘Articles’. The change is rather poetic and with purpose, given that the etymology of the word ‘Canon’ is from Ecclesiastical laws as distinguished from ‘Chapter’ or ‘Article’, which comes from Human law.⁶ The change is likely due to the framework of CPRA shifting from its duty-based framework to a value-centered structure; one that now seeks to not only limit the ethics in the practice of law to merely duty but also to the very core foundation of lawyers

¹ ATrain Education, *Ethics and the Law*, in *Ethics for Professional Case Managers* (online ed., 2025), <https://www.atrainceu.com/content/4-ethics-and-law>.

² Peter Singer, *Ethics (Moral Philosophy)*, *Encyclopædia Britannica* (last updated July 11, 2025), <https://www.britannica.com/topic/ethics-philosophy>.

³ A.M. No. 22-09-01-SC, *Code of Professional Responsibility and Accountability*.

⁴ *Infra* note 7

⁵ *Supra* note 3

⁶ Ladislav M. Örsy & Peter J. Huizing, *Canon Law*, *Encyclopædia Britannica* (last updated June 16, 2025), <https://www.britannica.com/topic/canon-law>.



via the values it seeks to impose and one that the canons are named for: independence, propriety, fidelity, competence, diligence, equality, and accountability.⁷

To highlight the shift from a duty-based framework to a value-based structure, a distinction is needed to see the rationale in the change of CPR to CPRA. Duty-Based framework is focused on the duty itself, questions of morality directly related to the moral obligation and actions in relation to their responsibility to the practice.⁸ Hence in that respect, CPR was focused primarily on the ethics of the lawyers to their duty.

In contrast, Value-Based Ethics is focused on the question of “what is good” beyond the practice alone; it seeks to impose values fundamental to the core of a person, important to the organization.⁹ Therefore, CPRA has an encompassing hold over the actions of a lawyer beyond their duty, highlighting the pursuit of the concept of noble values and positive public perception of those in the legal profession, both in practice and in private.

DELIMITATION OF TOPIC

Among the seven values, this article highlights the value of propriety, competence, and diligence, seen in Canon II and Canon IV.¹⁰ Propriety is the quality of lawyers to be seen as well-mannered and proper in their conduct and/or speech.¹¹ Competence is the quality of sufficient knowledge, judgment, skill, or strength.¹² Diligence is the quality expected to be given in the attention and care legally required or expected of an individual.¹³ The focus on these

⁷ “Justice Gaerlan: CPRA Signals Rebirth of Legal Community”, Supreme Court of the Philippines Public Information Office (Feb. 20, 2024), <https://sc.judiciary.gov.ph/justice-gaerlan-cpra-signals-rebirth-of-legal-community/>.

⁸ BBC, *Duty-Based Ethics*, BBC Ethics (n.d.), https://www.bbc.co.uk/ethics/introduction/duty_1.shtml.

⁹ Michael Segon & Christopher Booth, *Values-Based Approach to Ethical Culture: A Case Study*, in *Ethics, Values and Civil Society* (M. Schwartz & H. Harris eds., Res. in Ethical Issues in Orgs. Vol. 9, 2013) 93–118, [https://doi.org/10.1108/S1529-2096\(2013\)0000009011](https://doi.org/10.1108/S1529-2096(2013)0000009011).

¹⁰ Supra note 3

¹¹ “Propriety,” Merriam-Webster.com Dictionary (last updated July 11, 2025), <https://www.merriam-webster.com/dictionary/propriety>.

¹² “Competence,” Merriam-Webster.com Dictionary (last updated July 16, 2025), <https://www.merriam-webster.com/dictionary/competence>.

¹³ “Diligence,” Merriam-Webster.com Dictionary (last updated July 19, 2025), <https://www.merriam-webster.com/dictionary/diligence>.



three values is in the fact that the utilization of AI-Chatbots directly affects the public perception and the work of those in the practice of law.¹⁴

This article is limited to the use of artificial intelligence-powered chatbots in the practice of law. The core question is how this new technology can be ethically integrated into the practice. The question is being raised due to the increasing influence of AI through the medium of chatbots in our everyday activities and functions.¹⁵ Fundamentally, with how it should be ethically integrated in the practice.

BODY

Contrary to common belief, Chatbots are not new. It has existed and has been used as early as the 1960s.¹⁶ However, its first iterations are rather limited in their use and function— it was not until the late 1980s that Artificial Intelligence (AI) was integrated into the domain of chatbots, whereafter it would continue to be developed together.¹⁷ The great shift is in the integration of virtual assistants, which is the amalgamation of chatbots, AI, media, and the internet as seen via Google Assistant, Siri, Cortana; it felt inevitable to be exposed to these forms of technology which have penetrated personal life, especially around 2016 when its development and exposure had grown exponentially.¹⁸ Finally, around the year of 2022, the spike in the development of chatbots from 2016 has resulted in its product being available for public use and experimentation through applications such as ChatGPT, Alpha.ai, Studio.ai, and others of the like.¹⁹

The issue with the growth and use of these chatbots is their dependence. The public availability of chatbots has resulted in their widespread use and practice among people. Whereby it has now reached a

¹⁴ Infra note 25, 31

¹⁵ Himanshu Bansal & Rizwan Khan, *A Review Paper on Human Computer Interaction*, 8 *Int'l J. Adv. Research in Comp. Sci. & Software Eng'g* 53 (Apr. 2018), https://www.researchgate.net/publication/325534924_A_Review_Paper_on_Human_Computer_Interaction.

¹⁶ Eleni Adamopoulou & Lefteris Moussiades, *Chatbots: History, Technology, and Applications*, 2 *Machine Learning with Applications* 100006 (2020), <https://www.sciencedirect.com/science/article/pii/S2666827020300062>, <https://pubmed.ncbi.nlm.nih.gov/38948481/>.

¹⁷ id.

¹⁸ id.

¹⁹ Wilson K. O. Wong, *The Sudden Disruptive Rise of Generative Artificial Intelligence? An Evaluation of Their Impact on Higher Education and the Global Workplace*, 10 *J. of Open Innovation: Technology, Market, and Complexity* 37 (Feb. 29, 2024), <https://www.sciencedirect.com/science/article/pii/S2199853124000726>.



point where some papers have allegedly concluded that there is virtually no qualitative difference between AI work and human work in creative tasks.²⁰ The use and growth of these chatbots, in itself, are not a danger, nor is it ethically wrong. Its use is generally beneficial for its summative and research capabilities for tasks. The danger lies when it is depended upon in some professional practice; those were dependency and compliance threaten life, liberty, and/or property. The emphasis on how these tools should be used is in their definition as a tool and assistant; it is merely meant to be a valuable assistant in the process.²¹

Currently, there are no cases that involve the use of AI in relation to the practice of law in the Philippines. However, in the international scene, a myriad of scandals of AI use in the practice of law have been broadcasted on social media because of the concerning ways that these lawyers have utilized AI and its generative ability.

In Utah, United States of America, 2025, a lawyer was punished for filing a case brief for an appeal using ‘precedents’ that do not exist.²² The article covering the news now calls this an example of a mishap referred to as ‘AI Hallucinations.’²³ An ‘AI hallucination’ is one where AI provides misinformation or non-existent information to the user.²⁴

In the United Kingdom, in 2025, their High Court has noticed an influx of AI use in pleadings, and thus warns attorneys to check carefully the accuracy of their research as it has serious implications for the administration of justice and public confidence in the justice system.²⁵ The stern warning was due to a recent case in their country involving a 90 million pound lawsuit where a lawyer submitted a pleading which cited over 18 nonexistent cases.²⁶

²⁰Jennifer Haase & Peter H. P. Hanel, *Artificial Muses: Generative Artificial Intelligence Chatbots Have Risen to Human-Level Creativity*, 33 *Journal of Creativity* 100066 (Dec. 2023), <https://www.sciencedirect.com/science/article/pii/S2713374523000250>.

²¹ Id.

²² Bryan Schott, *Lawyer Punished for Filing Brief with Fake Cases from ChatGPT*, Salt Lake Tribune (May 29, 2025), <https://www.sltrib.com/news/politics/2025/05/29/lawyer-punished-filing-brief-with/>.

²³ Id.

²⁴ IBM, *What Are AI Hallucinations?*, IBM Think (Sept. 1, 2023), <https://www.ibm.com/think/topics/ai-hallucinations>. [wsj.com](https://www.wsj.com)+15 [ibm.com](https://www.ibm.com)+15 [ibm.com](https://www.ibm.com)+15

²⁵ Jill Lawless, *UK Judge Warns of Risk to Justice After Lawyers Cited Fake AI-Generated Cases in Court*, Associated Press (June 7, 2025), <https://www.apnews.com/article/uk-courts-fake-ai-cases-46013a78d78dc869bdfd6b42579411cb>.

²⁶ Id.



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In Canada, 2025, in a case involving matrimonial applications, a lawyer was found by the judge to have submitted a ‘factum’ and oral submission that had non-existent cases.²⁷ The greater issue is that in the said case, the counsel was unaware that their submitted pleadings were AI-generated; when asked by the court who should be accountable, the blame was shifted to their clerk.²⁸

In general, as illustrated above, the issue with the AI chatbots concerning their ethics in law practice is not in their use but rather in the inducement and temptation of complacency and dependency. The majority of cases involving AI blunders are avoidable and preventable— it simply requires greater competence and diligence to avoid the issue altogether. A difficult factor to mitigate in the use of AI-chatbots is propriety, one that strikes the public perception, lawyers using AI for their pleadings, research, and oratory may strike distrust in the confidence of lawyers and their reliability.

The confounding question here is whether or not the use of AI by a lawyer in their legal practice should be disclosed or not. Logically, the answer should be yes if it was material in manufacturing the work; however, when it was used with fact-checking and other diligence, it becomes complicated as to the determination of whether the work is still made by AI. The dilemma here is similar to the Ship of Theseus. The Ship of Theseus is a philosophical dilemma where an object that has had all of its components replaced, yet remains fundamentally the same object.²⁹ The relevance here is when a lawyer, per se, uses an AI chatbot for research and does due diligence to fact check and revise, is it still AI-generated, or was it merely used as a tool, would they then need to declare it as AI-generated or not? The point here is, when should lawyers hold themselves accountable for any blunders caused by AI, what is the reckoning of AI dependence and generation for the public to be informed.

Returning to the Philippine setting and its stance on AI. Although no jurisprudence nor amendment on AI, the Philippine Supreme Court is not against the incorporation of AI in the practice of law. The current Chief Justice,

²⁷ “Fake Legal Authorities – AI Hallucination or Professional Misconduct?”, JD Supra (May 13, 2025), <https://www.jdsupra.com/legalnews/fake-legal-authorities-ai-hallucination-9402850/>.

²⁸ id

²⁹ Noah Levin, *Ship of Theseus*, in *Philosophical Thought: An Introduction to Philosophy* (Heather Wilburn & Jamie Holmes eds., Tulsa Community College Press 2020), <https://open.library.okstate.edu/introphilosophy/chapter/ship-of-theseus/>.



before a convention of legal researchers in Zamboanga City, hopes that AI-enabled tech can improve the legal research capabilities of the courts, very openly aiming to have the same technology as 'Chat-GPT' for the Philippine courts to use.³⁰ However, this does not mean that the court has no reservations on the matter. The chief justice during the 19th Conference of Chief Justices of Asia and the Pacific in Kuala Lumpur, Malaysia on Oct. 12, 2024, acknowledged that AI has significant potential but warns of its reliance due to its lack of the human elements of justice.³¹

Further, as of the moment, it would appear that due to the lack of controversy, the court is taking a 'free market' approach to the use of AI in the practice of law. During a tech summit in 2024, another member of the Supreme Court stated that "The only way to truly immerse the legal profession in the use of artificial intelligence ... would be to test its limits while revising as we go along to keep up. The key idea to keep in mind is the responsible use of AI and other recent innovations, as there is much to be realized in terms of their potential and drawbacks." ³² However, such statements would not be without their reservations, whereby the justice would continue to caution in dependence, misinformation, and other drawbacks that AI may cause in its proliferation; resulting in a negative effect towards the administration of justice.³³

As stated, although currently there are no cases yet in the Philippines relating to AI-chatbots and the practice of law; based on the foreign controversies and the recently amended CPRA. When the time comes, perhaps the recent amendment may be utilized to construe whether or not the use is proper or not. For example, under Canon II, Responsible Use of Social Media, specifically sections 36-38, must logically be construed as a supplementary means towards ethical AI. ³⁴ The rationale being social media reaches a wide audience, and thus a lawyer spreading misinformation is already bad enough

³⁰ Benjamin Pulta, SC Eyes Wider Role for Artificial Intelligence in Legal Research, Philippine News Agency (Feb. 17, 2023), <https://www.pna.gov.ph/articles/1195476>.

³¹ Benjamin Pulta, *Gesmundo Warns Against Overreliance on AI in Judicial Processes*, Philippine News Agency (Oct. 14, 2024), <https://www.pna.gov.ph/articles/1235519>.

³² "Despite Risks, Legal System Should Keep Abreast With AI Developments," Supreme Court of the Philippines Public Information Office (Feb. 20, 2024), <https://sc.judiciary.gov.ph/saj-leonen-despite-risks-legal-system-should-keep-abreast-with-ai-developments/>.

³³ id

³⁴ Supra note 3



for public perception; even worse if such information was produced by AI. However, due to the development of AI to the point of difficulty in dissemination, it must not be sanctioned with such severity. Diligence is a complicated discussion that requires more thought and introspection. Under the current CPRA, use of AI-Chatbots may likely be regulated with Canon IV sections 1, 4,5, and 10; all of which involve not merely public perception and spread of misinformation but rather strikes to jeopardize a client's right to life, liberty, and/or property.³⁵ If AI were used haphazardly and with a grave lack of due diligence in cases mandated by Canon IV to be embodied with the value of competence and diligence, in such cases, accountability must be observed at a higher level of respect.

CONCLUSION

Due to the novelty of AI-Chatbots used in the practice of law, and the liberal stand of the court in use as of the moment, time can only tell how AI shall be ethically interwoven in the practice of law in the Philippines.³⁶ Internationally, however, a number of scandals involving unethical practices of AI now raised clamor for its regulation or at least a guideline for its proper use.³⁷ The center of controversy is in the concept of AI hallucinations, where AI-powered chatbots generate misinformation or non-existent ones.³⁸ Whereby the said controversy, on paper, could be regulated by guidelines or rules that ensure accountability of lawyers to be diligent and competent in the pursuit of justice and public confidence.

In any case, the right to utilize a novel technology demands acceptance in order to not be stubborn in the face of a great change, unable to adapt or utilize technology only to be left behind, clinging to impractical practices. However, said right to use must not be an unbridled license to be used as an excuse for sloth or sheer incompetence— such must be used as a tool to ensure diligent and competent work, to ensure justice is best upheld to the height of one's abilities with AI as the supporting tool. It is not prudent to reject novel technology, nor is it prudent to be dependent on one.

³⁵ Supra note 3

³⁶ Supra note 31

³⁷ Supra note 22, 25, 27

³⁸ Supra 24



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